

26SMCV04611 26SMCV04611

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-09

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CI%2C09%2F09%2F2026

Source SHA-256: 5002b79288579fd99b83233d73ad9d97999192a04adc8fc6a418c92bd82f5de2

Case Number: 26SMCV04611 Hearing Date: September 9, 2026 Dept: I

The court must confess a mistake. At issue today is a request for an order enforcing the prior TRO. The court went back and looked at the TRO file. The court sees that the original complaint was served by substituted service. However, the TRO application was not. The court had assumed—mistakenly (and the court is not blaming plaintiff)—that the original packet served by substituted service included information relating to the TRO, but there is no evidence that it did. The only things on that POS are the summons and complaint. That is the court's fault; plaintiff did not make any contrary representation to the court. Even so, the declaration regarding notice of the TRO and OSC were only on Aaron Newman, who plaintiff states is counsel for defendant. The court well understands the familial relationship—Aaron Newman is the son of the person plaintiff claims to be in charge of the defendant, Dr. Armand Newman—but that is not enough. Until defendant actually appears, defendant must actually be served with all materials unless counsel is expressly authorized to accept service. Because defendant was not served with the TRO, the court is not convinced that the TRO hearing comported with due process, and therefore the order must be VACATED. What the court will do is to set a new date for the TRO and OSC, and hopefully plaintiff can effectuate service on defendant in ample time. The court notes that the actual TRO and OSC were served on defendant in the same way as the complaint, but there still is not proof of notice of the hearing, and the notice is required to give the defense due process.

The court will discuss with plaintiff a new hearing date for

the TRO to be held next week that gives plaintiff time to get the TRO/OSC served as well. In the meantime, though, the court must, on its own motion VACATE the existing TRO and OSC. Accordingly, the ex parte application on calendar for today is MOOT. The court apologizes for its error.